

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801
**APPELLATE CROSS-
REFERENCE INDEX**

[caption]

AUTHORITY TO FILE AND AUTHORITY FOR ACCEPTANCE

A. Plaintiff's Right to File

Plaintiff files this paper in pro per. Code of Civil Procedure sections 367 (real party in interest), 1014 (appearance), 1010 (notice and papers), 1005(b) (service timing), 916(a) (limited stay; trial court retains jurisdiction over collateral matters), and 425.16(i) (anti-SLAPP appeal does not stay ancillary proceedings) authorize the filing. Business and Professions Code section 6125 bars only the representation of others and does not prohibit a party from filing papers on the party's own be-

half. *Drozdik v. Patten* (1995) 35 Cal.App.4th 1654 (pro per litigant has standing to file). California Rules of Court, rules 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a), and 8.252 authorize appellate-record preservation filings in the trial court during the pendency of an appeal. Evidence Code sections 452(d), 452(h), 453, and 459 authorize judicial notice requests at both the trial and appellate levels. *Lerner v. L.A. City Bd. of Ed.* (1963) 59 Cal.2d 382, 397 (party may place matters on the trial-court record for appellate preservation). *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189 to 191 (trial court retains jurisdiction to enforce or modify collateral orders notwithstanding a pending appeal). *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938 (section 916(a) stay does not divest the trial court of jurisdiction over matters not embraced in or affected by the judgment). U.S. Const. amend. I (petition clause), amend. XIV; Cal. Const. art. I, sections 3 and 7 (due process, petition, and access to courts).

B. Clerk's Duty to Accept

Government Code sections 26800 et seq., 69846.5, and 70617 define the clerk's ministerial duties; none authorizes a clerk to refuse a conforming paper on substantive grounds. California Rules of Court, rules 1.20, 2.100, 2.118, and 2.259(c) govern format compliance and filing obligations. SFTC Local Rules 2.10, 2.11, and 8.10 apply to electronic filings in this court. *Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 994 to 995 (clerk has no discretion to refuse filing of a conforming paper; the duty is ministerial). *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276, 279 to 280 (refusal to file is subject to mandamus). *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 777 to 778 (clerk cannot require a party to obtain court approval before accepting a conforming document for filing). *Carlson v. Department of Fish and Game* (1998) 68 Cal.App.4th 1268, 1271 (ministerial duty to file conforming papers).

C. Per-Document Authority (Cross-Reference Index)

California Rules of Court, rules 3.1110(f), 8.124(g), 8.144(b), and 8.155(a)(1)(A). This cross-reference index is filed under California Rules of Court, rules 3.1110(f), 8.124(g), 8.144(b), and 8.155(a)(1)(A), as an administrative aid to the Court of Appeal in *Rosario v. Abdelhalim*, Case No. A173827. It seeks no relief, makes no substantive request, and conforms to all format requirements of California Rules of Court, rules 2.100 to 2.111 and 2.256.

SECTION A: FATAL FACTUAL CONTRADICTIONS (Q-1 THROUGH Q-8)

1. Q-1

- **Subject:** Substantive truth-claim of nonproduction (Layer B); MIL 6 / MIL 17 vs. 802 investigation-claim
- **802 exhibits supporting:** Q-1, Q-3, Q-5
- **801 record cite:** MIL 6 (Tx 80936030); MIL 17 (Tx 80936053)

2. Q-2

- **Subject:** Possession of 911/BWC/CAD
- **802 exhibits supporting:** Q-1, Q-3
- **801 record cite:** 801 anti-SLAPP MPA p. 6, 9; 801 demurrer p. 4

3. Q-3

- **Subject:** Investigation performed / incomplete / unknowable
- **802 exhibits supporting:** Q-1, Q-5, Q-7
- **801 record cite:** 801 anti-SLAPP MPA

4. Q-4

- **Subject:** Constructive petitioning bar (institutional nexus)
- **802 exhibits supporting:** Q-1, Q-3
- **801 record cite:** 801 anti-SLAPP MPA p. 6

5. Q-5

- **Subject:** Fact representations vs. interpretation dispute
- **802 exhibits supporting:** Q-3
- **801 record cite:** 801 anti-SLAPP MPA p. 9-11

6. Q-6

- **Subject:** Duty to investigate (yes vs. no)
- **802 exhibits supporting:** Q-1, Q-3

- **801 record cite:** n/a (internal to 802)

7. **Q-7**

- **Subject:** Jury presented vs. deprived
- **802 exhibits supporting:** Q-1, Q-3
- **801 record cite:** 801 anti-SLAPP MPA p. 3

8. **Q-8**

- **Subject:** File transfer knowable vs. CSAA file unknowable
- **802 exhibits supporting:** Q-7
- **801 record cite:** 801 anti-SLAPP Reply p. 3

SECTION B: MAY 12 DOCTRINAL CONTRADICTIONS (Q-9 THROUGH Q-13)

9. **Q-9**

- **Subject:** CCP 425.17(c) inapposite vs. anti-SLAPP framing
- **802 exhibits supporting:** Q-1
- **801 record cite:** May 12, 2026 minutes

10. **Q-10**

- **Subject:** Civ. Code 47(b) anchor inconsistency
- **802 exhibits supporting:** Q-3
- **801 record cite:** May 12, 2026 minutes

11. **Q-11**

- **Subject:** “Fully litigated” vs. limitations accrual
- **802 exhibits supporting:** Q-3
- **801 record cite:** May 12, 2026 minutes; RFJN Exs. E-H

12. **Q-12**

- **Subject:** Intrinsic-litigated vs. demurrer insufficiency
- **802 exhibits supporting:** Q-3

- **801 record cite:** May 12, 2026 minutes

13. **Q-13**

- **Subject:** 425.16(e)(2) vs. 425.16(e)(1) double-counting
- **802 exhibits supporting:** Q-1, Q-7
- **801 record cite:** 801 anti-SLAPP MPA

Each Q-row is preserved on two independent grounds: (i) position estoppel from CSAA's adopted 801 protected-gravamen posture; and (ii) admitted-fact effect under *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966 to 967, and *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318, if the Court of Appeal declines to apply estoppel.

AUTHENTICITY (SHA-256 OF THE EIGHT 802 EXHIBITS)

1. **Q-1**

- **File:** 802-ANTI-SLAPP-MPA-2026-04-09.pdf
- **SHA-256 (truncated):** 10a45f9915c87c49e4225663a2a362ee146eb81153511bf930f30a72ec5c58ca

2. **Q-2**

- **File:** 802-ANTI-SLAPP-OCONEILL-DECL-2026-04-09.pdf
- **SHA-256 (truncated):** ecf8de63d5b3738505ad4f4627446d1a2efb8c4c8e49fb31710c617fee4d98a4

3. **Q-3**

- **File:** 802-DEMURRER-MPA-2026-04-13.pdf
- **SHA-256 (truncated):** 72ed9c68beba3113a0428d49369e7f3f554195642048a6112a6b702a5439ae5e

4. **Q-4**

- **File:** 802-DEMURRER-OCONEILL-DECL-2026-04-13.pdf
- **SHA-256 (truncated):** 014f54d0b7382efca3fc8a824f5e087d3d005deb6be4a554c5dc93cc8963193e

5. **Q-5**

- **File:** 802-CCP436-MPA-2026-04-22.pdf
- **SHA-256 (truncated):** 28f385cb586bbeb8f04699fe7f3c0dcb2fe131bab73538a0dda0ab2466af77e1

6. **Q-6**

- **File:** 802-CCP436-OCONEILL-DECL-2026-04-22.pdf

- **SHA-256 (truncated):** 8f118c0faf2565b4a8c96839eb34fe5b2371c08e32ef8db0ac5b4c4d697a604d

7. Q-7

- **File:** 802-ANTI-SLAPP-REPLY-2026-05-05.pdf
- **SHA-256 (truncated):** d98ca49fb9bdc408032047214d6f67376e2667b19bd26a12f83d5af4403ceec3

8. Q-8

- **File:** 802-ANTI-SLAPP-REPLY-OCONNELL-DECL-2026-05-05.pdf
- **SHA-256 (truncated):** 4c00344486cdff9ad2976d1d22b473d6b13144d4592ab7bec51bc60fa119481f

The SHA-256 column is populated by `bootstrap_sources.py` at build time from the validated PDFs so the appellate panel can verify authenticity from the appendix alone.

PARENT APPEAL ANCHOR

Rosario v. Abdelhalim, Cal. 1st Dist. Ct. of Appeal, Case No. A173827; notice of appeal and notice designating record on appeal filed by Plaintiff. The 802 defense filings themselves rely on A173827 (e.g., 802 anti-SLAPP MPA p. 1 footnote 1).

SECTION C: REYNA CONDUCT RECORDS (R-1 THROUGH R-7 TO APPENDIX R)

1. R-1

- **Subject:** Compex Deposition Subpoena (SFPD, Order CA1147102-021)
- **Pin cite:** Compex pp. 5 to 7; TAC para. 46(a)

2. R-2

- **Subject:** RT Vol. 7 subpoena / supplemental report colloquy
- **Pin cite:** RT 7 p. 157 ll. 5 to 16 (quote); context RT pp. 154, 159

3. R-3

- **Subject:** MIL 17 (911 provenance)
- **Pin cite:** MIL 17 p. 3 ll. 1261 to 1265

4. R-4

- **Subject:** MIL 6 exclusion ruling excerpt

1 • **Pin cite:** CT 1 pp. 149 to 151

2 5. **R-5**

3 • **Subject:** Feb. 18, 2025 hearing (Jessup; defense non-receipt)

4 • **Pin cite:** Hr'g Tr. Feb. 18, 2025 pp. 139 to 141

5 6. **R-6**

6 • **Subject:** CSAA denial letter

7 • **Pin cite:** Feb. 25, 2021 denial

8 7. **R-7**

9 • **Subject:** Reyna 2024 discovery letter

10 • **Status:** GAP (omitted from volume unless supplied)

Dated: May 26, 2026



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